



Supplemental Nutrition Assistance Program (SNAP) Students in Higher Education

Policy 24.27

Effective: May 1, 2019

Introduction

All Tennessee Department of Human Services (TDHS) staff must be able to determine SNAP eligibility for individuals enrolled in higher education.

Scope

To provide procedures and guidelines for staff to determine an individual's student status and how it affects eligibility as a member of a Supplemental Nutrition Assistance Program (SNAP) household.

Policy

A. Students of Higher Education

1. A student of higher education is defined as an individual who meets the following criteria:
 - a. at least age eighteen (18), but under age fifty (50); and
 - b. physically and mentally fit; and
 - c. enrolled at least half-time in an institution of higher education.
2. Refer to Section H defining enrollment.

B. Institution of Higher Education

An institution of higher education includes a permanent dwelling or fixed mailing address is not required.

1. a business, technical, trade or vocational school that normally requires a high school diploma or equivalency certificate for enrollment in the curriculum, or
2. if the individual is enrolled in a regular curriculum at a college or university that offers degree programs regardless of whether a high school diploma is required.

C. Student Eligibility Criteria

1. To be eligible to participate in Supplemental Nutrition Assistance Program (SNAP) a student of higher education as stated in Section A must meet at least one of the following criteria:
 - a. Be employed an average of twenty (20) hours per week or an average of eighty (80) hours per month.
 - i. The student must be paid for such employment.
 - ii. If self-employed, the student must have weekly earnings at least equal to the federal minimum wage multiplied by twenty (20) hours.
 - iii. Students paid or subsidized by Workforce Innovation and Opportunity Act (WIOA) for class hours are not considered employed during that time. Such class attendance does not meet the average of twenty (20) hours a week or average of eighty (80) hours per month work requirement.
 - b. Be participating in a state or federally financed work study program funded in full or in part by Title IV, Part C, of the Higher Education Act of 1965 (as amended) to qualify under this provision:
 - i. The student must actually be working at a job for which he/she receives earnings or tuition credit.
 - ii. The student must be approved for work-study at the time of application for SNAP, the work-study must be approved for the school term, and the student must anticipate actually working during that time.
 - iii. The exemption shall begin with the month in which the school term begins or the month work-study is approved, whichever is later. Once begun, the exemption shall continue until the end of the month in which the school term ends, or it becomes known that the student has refused an assignment.
 - iv. The exemption shall not continue between terms when there is a break of a full month or longer unless the student is participating in work-study during the break.
 - c. Be in an institution of higher education through a program under WIOA.
 - d. Be enrolled in institutions of higher education as a result of participation in Employment Career Services Programs.
 - e. Be assigned to institutions of higher education by Employment and Training (E&T).
 - f. Be assigned to a program under section 236 of the Trade Act of 1974.
 - g. Be enrolled in an employer sponsored on-the-job program. This only applies during the training period.
 - h. Be receiving Temporary Assistance for Needy Families (TANF) cash grant.

- i. Be responsible for the care of a dependent household (HH) member under the age of six (6).
 - i. The student does not have to provide care for the child personally at all times.
 - ii. The child may be in day care while the student is in class
 - iii. In a two-parent HH, one parent will need to be identified as being the one who has primary responsibility for the care of the child or children.
- j. Be responsible for the care of a dependent HH member who has reached the age of six (6) but is under age twelve (12) when the State agency has determined that adequate child care is not available to enable the student to attend class and comply with the work requirements.
 - i. The student may attend school full time; or attends school less than full time and the local office determines that adequate child care is not available for the client to attend school and satisfy the twenty (20) hour work week requirement. Document the reason for the lack of adequate child care in CLRC.
 - ii. In a two-parent HH, one parent will need to be identified as being the one who has primary responsibility for the care of the child or children.
- k. Be a single parent enrolled in an institution of higher education on a full-time basis (as determined by the institution) and be responsible for the care of a dependent child under age twelve (12).
 - i. This provision applies in those situations where only one natural, adoptive, or stepparent (regardless of marital status) is in the same SNAP HH as the child.
 - ii. If no natural, adoptive, or stepparent is in the same SNAP HH as the child, another full-time student in the same SNAP HH as the child may qualify for eligible student status under this provision if he or she has parental control over the child and is not living with him or her.
 - iii. For examples on what constitutes as adequate childcare, staff shall refer to [Adequate Child Care](#)

D. Ineligible Students

1. An ineligible student is an individual, who is enrolled in an institution of higher education, but fails to meet the student eligibility criteria outlines in Section C.
2. The following individuals are not considered as students:
 - a. individuals age seventeen (17) or under, or individuals age fifty (50) or over;
 - b. physically or mentally disabled individuals;
 - c. persons attending high school; or
 - d. persons not attending school at least half-time;
3. A student who does not meet any of the student eligibility criteria is ineligible to participate in SNAP.

4. Consider ineligible students as non-household (HH) members, regardless of their relationship to other HH members.

E. Verification

For procedures in establishing student status and determining how to treat the income, deductions, and resources of ineligible students staff shall refer to [Establishing Student Status and the Treatment of Income, Resources, and Deductions for Ineligible Students](#).

F. Treatment of Educational Income

1. All educational income is excluded, with the exception of assistance which is designated for normal living expenses for eligible students.
2. The excluded educational income may be from, but is not limited to:
 - a. Title IV of the Higher Education Act
 - b. Bureau of Indian Affairs (BIA)
 - c. Carl D. Perkins Vocational and Applied Technology Education Act
 - d. Non-Title IV educational income
 - e. Nonfederal deferred payment loans that are specifically earmarked by the lender for education expenses.
 - f. Federal grants
 - g. Private sources including scholarships earmarked by the grantor as a reimbursement or an allowance for education expenses.
 - h. All college work-study education income.

G. Treatment of Resources for Eligible Students

1. An eligible student's resources are considered in the same manner as for any other eligible HH member.
2. Educational expenses will not be deducted from resources.
3. Exclude educational funds as resources unless they are retained after the period of intended use.
4. Refer to [How to Treat the Resources of an Eligible Student](#) for examples of how to treat the resources of an eligible student.

H. Enrollment and Changes in Student Status

1. A student's enrollment status begins on the first day of the school term of the institution of higher education. Such enrollment shall be deemed to continue through normal periods of class attendance, vacation, and recess. The enrollment status ends when the student either:
 - a. graduates;
 - b. is suspended;

- c. is expelled;
 - d. drops out; or
 - e. does not intend to register for the next normal school term, not counting summer school.
2. Students who meet the student eligibility criteria during the regular school year remain exempt from work registration during the summer months as long as they continue to meet student eligibility criteria during the summer months.
3. Ineligible students may become eligible at any time, including during school vacations, if they meet one of the eligibility criteria.
4. Students who lose their enrollment status, or who do not intend to register for the next normal school session (excluding summer school), lose their student status and are treated as any other HH member.
5. Staff shall refer to [Changes in Student Status Examples](#) on the different type of changes in student status scenarios.
6. SNAP recipients can use [HS-2302 Change Report](#) to report changes in student status. Refer to Chapter 41 Continued Responsibilities of the [SNAP Policy Manual](#).

I. Acceptable Forms of Verification

1. Examples of acceptable sources to verify school enrollment are:
 - a. school records
 - b. statement from Financial Aid Office
 - c. class schedules; or
 - d. receipt for tuition and mandatory fees.
2. Examples of acceptable sources to verify disability to make a determination for student eligibility:
 - a. Bendex, SDX, or award letter to prove receipt of temporary or permanent disability benefits from either a governmental or private source;
 - b. a statement from a physician or licensed/certified psychologist; or
 - c. statement of approval for services through the Department of Rehabilitation Services.
3. Educational Income and Financial Aid

The applicant /recipient's statement may be accepted as verification of the amount of unearned educational income including work-study income

Supporting Documents

[HS-2302e Change Report](#) (English) ([instructions](#))

[HS-2302sp Change Report](#) (Spanish) ([instructions](#))

[HS-2302a Change Report](#) (Arabic) ([instructions](#))

[HS-2302s Change Report](#) (Somali) ([instructions](#))

[Adequate Child Care](#)

[Establishing Student Status and the Treatment of Income, Resources, and Deductions for Ineligible Students](#)

[How to Treat the Resources of an Eligible Student](#)

[Changes in Student Status Examples](#)

[SNAP Policy Manual: Chapter 41 Continued Responsibilities](#)

[Family Assistance Treatment of Income Policy Desk Guide](#)

[SNAP Student Desk Guide](#)

Definitions/Acronyms

Term	Definition
Adequate Child Care	Adequate childcare exists only when another responsible person lives in the home with the student and is able, and available, to care for the child. For this purpose, a responsible person is someone who is mentally and physically capable of providing childcare for the household.
Assistance Group	If the student must obtain childcare outside the home, adequate childcare does not exist.
BIA	Bureau of Indian Affairs
Deferred Student Loan	Those members of the filing unit who are eligible to receive benefits.
Enrollment	A loan for educational expenses for which repayment is deferred until education is completed.
E&T	Employment and Training
HH	Household
Institution of Higher Education	A student is deemed to be enrolled in an institution of higher education when he/she has been admitted as a student starting on the first day of the school term.
Institution of Post-Secondary Education	Any public or private educational institution which normally: 1. requires a high school diploma or equivalency certificate for enrollment; or 2. admits persons who are beyond the seventeen (17) year old compulsory school attendance age, provided the institution is legally authorized or recognized by the state to provide an educational program beyond secondary education; or 3. provides a program of training to prepare students for gainful employment.
Mandatory Fees	Those fees may include the rental or purchase of any equipment, materials, and supplies related to the pursuit of the course of study involved. The exclusion of mandatory fees is no longer restricted to fees charged to all students or charged to all students within a certain curriculum.
Physical or Mental Fitness	Physical or mental fitness means that an individual is fit for employment and does not suffer from any disability which would prevent his/her being gainfully employed.

Term	Definition
Responsible person	Someone who is mentally and physically capable of providing adequate child care for the household as defined herein.
SNAP	Supplemental Nutrition Assistance Program
Student	A student is a person who meets all of the following criteria: • is at least age eighteen (18), but under age fifty (50); • is physically and mentally fit; and • is enrolled at least half time in an institution of higher education. Although other individuals may be enrolled in school, they are not considered students if they do not meet all of the above criteria.
TANF	Temporary Assistance for Needy Families
WIOA	Workforce Innovation and Opportunity Act

Supersedes

SNAP Policy Manual July 2017 Chapter 2 and Chapter 4; Bulletin 28, FA-10-16

Authority

7 CFR §273.5

Tenn. Comp. R. & Regs. 1240-1-2-.02(3)(f); 1240-1-2-.02-(3); 1240-1-2-.02-(3)(B)-1; 1240-1-2-.02-(3); 1240-1-2-.02-(3); 1240-1-2-.02-(3)-4; 1240-1-4-.15(C); 1240-1-4-.15(D); 1240-1-4-.05-.15

Application

All TDHS Employees and Contractors

Revision History

Date	Version	Location of Change	Description/Reason for Change
03/29/2019	05/01/2019	N/A	New Document

Approval History

Approved By	Approver Title	Approved Date	Effective Date
Danielle Barnes	Commissioner	03/29/2019	05/01/2019

Current Approver

